

Comment

Section 185 provides for exemption to the railway administration from the payment of tax to any local authority in respect of advertisement made on any part of the railway unless directed by the central Government.

186. Protection of action taken in good faith. – No suit, prosecution or other legal proceeding shall lie against the Central Government, any railway administration, a railway servant or any other person for anything which is in good faith done or intended to be done in pursuance of this Act or any rules or orders made there under.

Comment.

Section 186 provides that no suit, prosecution or other legal proceedings shall lie against the Central Government, railway administration, railway servant or any other person for anything done in good faith or intended to be done in pursuance of this Act.

187. Restriction on execution against railway property. – (1) No rolling stock, machinery, plant, tools, fittings, materials or effects used or provided by a railway administration for the purpose of traffic on its railway, or of its station or workshop, shall be liable to be taken in execution of any decree or order of any court or of any local authority or person having by law the power to attach or distrain property or otherwise to cause property to be taken in execution, without the previous sanction of the Central Government.

2) Nothing in sub-section (1) shall be construed to affect the authority of any court to attach the earnings of a railway in execution of a decree or order.

188. Railway servants to be public servants for the purposes of Chapter IX and Sec.409 of the Indian Penal Code-

1) Any railway servant, who is not a public servant within the meaning of Sec.21 of the Indian Penal Code(45 of 1860) shall be deemed to be a public servant for purposes of Chapter IX and Sec.409 of that code.

2) In the definition of 'legal remuneration' in Sec.161 of the Indian Penal Code(45 of 1860), the word "Government"

189. Railway servants not to engage in trade:-

A railway servant shall not-

- (a) purchase or bid for, either in person or by an agent, in his own name or in that of another, or jointly or in shares with others, any property put to auction under sect.83 or sec.84 or sec.85 or sec.90 or
- (b) in contravention of any direction of the railway administration in this behalf, engage in trade.

190. Procedure of delivery to railway administration of property detained by a railway servant.

If a railway servant is discharged from service or is suspended, or dies or absconds or absents himself, and he or his wife or widow or any member of his family or his representative refuses or neglects, after notice in writing for that purpose, to deliver up to the railway administration or to a person appointed by the railway administration, in the behalf any station, office or other building with its appurtenances, or any books papers, keys, equipment or other matters, belonging to the railway administration and in the possession or custody of such railway servant at the occurrence of any such event as aforesaid, any Metropolitan Magistrate or Judicial Magistrate of the first class may, on application made by or on behalf of the railway administration, order any police officer, with proper assistance, to enter upon the station, office or other building and remove any person found therein and take possession thereof, or to take possession of the books, papers or other matters, and to deliver the same to the railway administration or to a person appointed by the railway administration in that behalf.

Comment

Section 190 provides for the procedure to be followed by a railway servant for delivery of property detained by him to railway administration.

191. Proof of entries in records and documents. – Entries made in record or other documents of a railway administration shall be admitted in evidence in all proceedings by or against the railway administration, and all such entries may be proved either by the production of the records or other documents of the railway administration containing such entries or by production of a copy of the entries certified by the officer having custody of the records or other documents under his signature and stating that it is a true copy of the original entries and that such original entries are contained in the records or other documents of the railway administration in his possession.

Comment